**BRENDAN NGEHSI NEWANFORBI**

Plaintiff, In Pro Per

1455 Cat Tail Drive, Stockton, CA 95204

Tel: (209) 801-4442  E-mail: bnn.cdl@gmail.com

**UNITED STATES DISTRICT COURT**

**FOR THE EASTERN DISTRICT OF CALIFORNIA**

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|---|---|
| **BRENDAN NGEHSI NEWANFORBI,**<br><br>Plaintiff,<br><br>v.<br><br>STATE OF CALIFORNIA; CALIFORNIA HIGHWAY PATROL; OFFICER SANTIAGO MEZA-GONZALEZ (#023295); OFFICER MELANO (#023054),<br><br>Defendants. | **Case No. 2:25-cv-01460-DC-CSK**<br><br>**NOTICE OF VOLUNTARY DISMISSAL WITHOUT PREJUDICE**<br>[Fed. R. Civ. P. 41(a)(1)(A)(i)]<br><br>Judge: Hon. Dena M. Coggins<br>Mag. Judge: Hon. Chi Soo Kim<br><br>Complaint Filed: May 27, 2025 |

TO THE CLERK OF THE COURT, ALL PARTIES, AND THEIR COUNSEL OF RECORD:

PLEASE TAKE NOTICE that, pursuant to Rule 41(a)(1)(A)(i) of the Federal Rules of Civil Procedure, Plaintiff BRENDAN NGEHSI NEWANFORBI, appearing in propria persona, hereby voluntarily dismisses the above-captioned action in its entirety, without prejudice, as to all Defendants, including Defendants STATE OF CALIFORNIA; CALIFORNIA HIGHWAY PATROL; OFFICER SANTIAGO MEZA-GONZALEZ (#023295); and OFFICER MELANO (#023054).

Plaintiff is entitled to dismiss this action as a matter of right because no Defendant has served either an answer or a motion for summary judgment. (Fed. R. Civ. P. 41(a)(1)(A)(i).) The only dispositive motion served by any Defendant in this action is Defendants' Motion to Dismiss under Rule 12(b)(6) (filed December 10, 2025), which is neither an answer nor a motion for summary judgment within the meaning of Rule 41(a)(1)(A)(i). (See *Hamilton v. Shearson-Lehman American Express, Inc.*, 813 F.2d 1532, 1534-35 (9th Cir. 1987) [right to

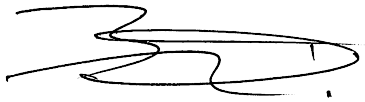
dismiss under Rule 41(a)(1) is absolute until the defendant serves an answer or motion for summary judgment]; *Concha v. London*, 62 F.3d 1493, 1506 (9th Cir. 1995) [Rule 12(b)(6) motion does not terminate the plaintiff's absolute right to dismiss under Rule 41(a)(1)].) The Magistrate Judge's April 20, 2026 Findings and Recommendations recommending dismissal, Plaintiff's April 21, 2026 Objections thereto, and Plaintiff's July 7, 2026 Notice of Supplemental Authority likewise do not constitute an answer or a motion for summary judgment.

Plaintiff has refiled the claims against Officers Meza-Gonzalez and Melano in the United States District Court for the Northern District of California, *Nforbi v. Meza-Gonzalez et al.*, No. 3:26-cv-08271-PHK (docketed August 10, 2026).

Because this is the first voluntary dismissal by Plaintiff of any action based on or including the claims asserted in this action, the dismissal is **without prejudice** and does not operate as an adjudication on the merits. (Fed. R. Civ. P. 41(a)(1)(B).) No court order is required to effect this dismissal. (See *Commercial Space Mgmt. Co. v. Boeing Co.*, 193 F.3d 1074, 1077-78 (9th Cir. 1999) [Rule 41(a)(1) notice of dismissal is self-executing and terminates the action automatically upon filing].) The Clerk of the Court is respectfully requested to close the file. Each party shall bear its own costs and attorneys' fees, if any.

Dated: August 20, 2026

*Respectfully submitted,*



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**CERTIFICATE OF SERVICE**

I, BRENDAN NGEHSI NEWANFORBI, declare under penalty of perjury under the laws of the United States of America that on August 20, 2026, I caused a true and correct copy of the foregoing **NOTICE OF VOLUNTARY DISMISSAL WITHOUT PREJUDICE** to be filed with the Clerk of the Court through the Court's CM/ECF system, which will provide electronic notice to all counsel of record registered through CM/ECF, and, to the extent required, to be served by United States first-class mail, postage prepaid, and/or by electronic mail, upon the following:

**Counsel for Defendants:**

Haiyang A. Li, Deputy Attorney General

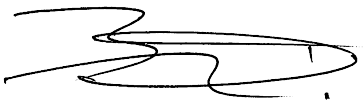
Office of the Attorney General / Department of Justice

300 South Spring Street, Suite 1702, Los Angeles, CA 90013

Haiyang.Li@doj.ca.gov

cc: Adriana Zagal, Legal Secretary -- Adriana.Zagal@doj.ca.gov

Executed on August 20, 2026, at Milpitas, California.



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